

SUPREME COURT: KINGS COUNTY

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ADAN ROMAN,

Index No.:

Date purchased 3/12/18

Plaintiff(s),

Plaintiff designates

KINGS

-against-

County as the place of Trial.

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER KHAN and
DETECTIVE LADYZHINSKY,The basis of the venue is
Plaintiffs Residence:

Defendant(s).

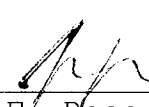
Plaintiff resides at:
8757 Bay 16th Street, Apt. A4
Brooklyn, NY 11214

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SUMMONS WITH NOTICE

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Brooklyn, New York
March 12th, 2018

 James F. Ross, Esq. of
 THE LAW OFFICES OF ROSS
 & HILL, PLLC.
 Attorneys for Plaintiff
 16 Court Street, 35th Floor
 718-855-2324

Notice: The nature of this action: negligence; personal injuries; false arrest; false detention; false imprisonment; assault and battery; malicious prosecution;

The relief sought is monetary damages.

Upon your failure to appear, judgment will be taken against you by default in a sum which exceeds the jurisdiction of any lower court, together with interest from August 5, 2017 and the costs of this action.

SUPREME COURT: KINGS COUNTY

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ADAN ROMAN,

Plaintiff(s),

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, OFFICER KHAN and
DETECTIVE LADYZHINSKY,

Defendant(s).

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Plaintiff herein, by his attorneys, **ROSS and HILL**, complaining of the above named Defendants, respectfully shows to the Court and allege the following upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times hereinafter mentioned, plaintiff was and still is a resident of the County of Kings, City and State of New York.

2. At all times hereinafter mentioned, defendant, The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. At all times hereinafter mentioned, defendant, The Police Department of The City of New York is an agency acting on behalf of The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. That at all times hereinafter mentioned defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

5. At all times hereinafter mentioned, Defendants Khan and Ladyzhinsky were

police officers acting in the scope of their employment for the New York City Police Department.

6. On September 15, 2017 plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within 90 days of the incident giving rise to this law suit.

7. That more than thirty (30) days have elapsed since the service of said Notice and adjustment or payment of plaintiff's claim has been neglected or refused.

8. That this action is being commenced within one (1) year and ninety (90) days after the happening of the event upon which the claim is based.

9. That on August 5, 2017 at approximately 2:00 P.M., on Bay 16th Street near Shore Parkway, Brooklyn, New York, New York City police officers, negligently arrested the plaintiff even though plaintiff had not acted unlawfully.

10. That the arrest of plaintiff was without reasonable or probable cause and constituted a false arrest of plaintiff.

11. The incident as aforescribed resulted from the negligence of the defendants, The City of New York and New York City Police Department, their agents, servants and/or employees, including Defendants Officer Khan and Detective Ladyzhinsky with no negligence on the part of the plaintiff contributing thereto.

12. The false arrest of plaintiff, caused plaintiff pain, suffering, humiliation and personal injury.

13. The false arrest of plaintiff resulted from the intentional and malicious actions of New York City police officers

14. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court and exemplary damages in an amount

which exceeds the jurisdiction of any lower court.

AS AND FOR A SECOND CAUSE OF ACTION

15. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 - 14 hereof with the same force and effect as though fully set forth herein at length.

16. After falsely arresting plaintiff, police officers handcuffed plaintiff and restrained him and unlawfully detained plaintiff in police custody.

17. The stopping and unlawful detention of plaintiff was without any cause or justification.

18. The unlawful detention of plaintiff caused said plaintiff pain, humiliation, personal injury and suffering.

19. The unlawful detention of plaintiff resulted from the intentional and malicious actions of New York City police officers.

20. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A THIRD CAUSE OF ACTION

21. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 - 14 and 15 - 20 hereof with the same force and effect as though fully set forth herein at length.

22. That after falsely arresting plaintiff, plaintiff was brought to the police precinct and then to Central Booking and was unlawfully imprisoned, constituting a false imprisonment of plaintiff.

23. That the false imprisonment of plaintiff caused said plaintiff personal injury, pain, humiliation and suffering.

24. The false imprisonment of plaintiff resulted from the intentional and malicious actions of New York City police officers.

25. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

AS AND FOR A FOURTH CAUSE OF ACTION

26. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1-14, 15 - 20 and 21 - 25 hereof with the same force and effect as though fully set forth herein at length.

27. In placing plaintiff under arrest, police officers used excessive and unjustified force, intimidated plaintiff and injured plaintiff.

28. The actions of the arresting officers constituted an assault and battery.

29. As a result of the assault and battery committed on plaintiff, plaintiff sustained personal injuries.

30. The assault and battery of plaintiff resulted from the intentional and malicious actions of New York City police officers.

31. As a result of the foregoing, plaintiff sustained compensatory damages in an amount which exceeds the jurisdiction of any lower court and exemplary damages in an amount which exceeds the jurisdiction of any lower court.

WHEREFORE, plaintiff demands contemporary and exemplary damages against the

defendants on all causes of action in amounts that exceed the jurisdiction of any lower court,
with interest, costs and disbursements of the action.

Yours, etc.,

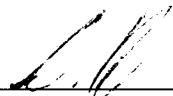
A handwritten signature in black ink, appearing to read 'J. Ross', is positioned above the printed name and address.

James F. Ross, Esq. OF
ROSS & HILL, ESQS.
Attorneys for Plaintiff
16 Court Street, 35TH Floor
Brooklyn, New York 11241
(718)855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

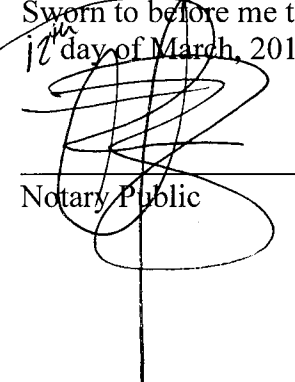
Adan Roman, being duly sworn, deposes and says:

I am the plaintiff in the within action, have read the foregoing **COMPLAINT** and know the contents thereof; that same is true to my own knowledge, except as to those matters therein stated to be alleged upon information and belief and as to those matters, I believe it to be true.



Adan Roman

Sworn to before me this
12th day of March, 2018



Notary Public

ANAL RUIZ
Notary Public, State of New York
No. 01PU6349171
Qualified in Queens County
Commission Expires October 17, 2020

INDEX NO.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, OFFICER KHAN and DETECTIVE
LADYZHINSKY,

Defendant(s).

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SUMMONS & COMPLAINT
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ROSS & HILL, PLLC.
Attorney for Plaintiff
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